



CHAPTER 93.

An Act to empower the Minister of Labour in case of war to extend the Unemployment Assistance Act, 1934, to additional classes of persons, and to modify or suspend any of the provisions of the said Act, and to make provision for the payment of allowances in an emergency.

[5th September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purpose of preventing or relieving distress arising by reason of any war in which His Majesty may be engaged, the Minister of Labour, with the approval of the Treasury, may by regulations extend the class of persons to whom an allowance may be granted under the Unemployment Assistance Act, 1934, so as to include such persons as may be specified in the regulations, being persons who are in distress as the result of circumstances caused by the war, and the regulations may accordingly apply in relation to the persons specified therein all or any of the provisions of the said Act, subject to any modifications and provisions contained in the regulations.

Power of Minister of Labour to make regulations extending Unemployment Assistance Act, 1934, to persons distressed as result of war, and modifying or suspending any provision of that Act.

(2) The Minister of Labour, with the approval of the Treasury, may by regulations modify, or suspend

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*Unemployment Assistance 2 & 3 GEO. 6.
(Emergency Powers) Act, 1939.*

24 & 25
Geo. 5. c. 29.

the operation of, any of the provisions of the Unemployment Assistance Act, 1934, to such extent as he considers expedient in view of the conditions arising by reason of any war in which His Majesty may be engaged :

Provided that no such regulations shall affect the provisions of subsections (2) and (3) of section thirty-eight of the said Act or enable regulations to be made for the purposes of subsection (3) of that section otherwise than in accordance with the provisions of section fifty-two of the said Act.

(3) All regulations made under this Act shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament, within the next twenty-eight days on which that House has sat after such a regulation is laid before it, resolves that the regulation be annulled, the regulation shall thereupon cease to have effect without prejudice to the validity of anything done in the meantime thereunder or to the making of a new regulation.

56 & 57 Vict.
c. 66.

(4) Section one of the Rules Publication Act, 1893, (which requires notice to be given of a proposal to make statutory rules) shall not apply to any regulations made under this Act.

Payment of allowances during emergency.

2. Where, under arrangements made by the Minister of Labour with the approval of the Treasury or made with the approval of the Minister of Labour and the Treasury for the purpose of dealing with any emergency arising by reason of any war in which His Majesty may be engaged, payments have been made by way of allowances under the Unemployment Assistance Act, 1934, as extended by this Act, without due proof of any one or more of the matters required to be proved before the grant of such an allowance or without compliance with any of the other requirements of the said Act, the payments shall, for the purposes of the said Act, be deemed to be allowances duly granted thereunder.

**Expendi-
ture out of
moneys
provided by
Parliament.**

3. There shall be defrayed out of moneys provided by Parliament any increase attributable to this Act in the sums payable under the Unemployment Assistance Act, 1934, out of moneys provided by Parliament.

4. Notwithstanding anything in the Government of Ireland Act, 1920, the Parliament of Northern Ireland shall have power to make laws, in respect of matters exclusively relating to the portion of Ireland within their jurisdiction or any part thereof, for purposes similar to the purposes of this Act.

Provision relating to Northern Ireland.
10 & 11
Geo. 5. c. 67.

5.--(1) This Act may be cited as the Unemployment Assistance (Emergency Powers) Act, 1939.

Short title and duration of Act.

(2) This Act shall continue in force until such date as His Majesty may by Order in Council declare to be the date on which the emergency that was the occasion of the passing of this Act came to an end, and shall then expire except as respects things previously done or omitted to be done.

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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